



भारत का राजपत्र The Gazette of India

असाधारण
EXTRAORDINARY

भाग II—खण्ड 1
PART II—Section 1

प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं० 4] नई दिल्ली, मंगलवार, जनवरी 14, 1986/पौष 24, 1907
No. 4] NEW DELHI, TUESDAY, JANUARY 14, 1986/PAUSA 24, 1907

इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन
के रूप में रखा जा सके।

Separate paging is given to this Part in order that it may be filed
as a separate compilation

MINISTRY OF LAW AND JUSTICE

(Legislative Department)

New Delhi, the 14th January, 1986/Pausa 24, 1907 (Saka)

The following Act of Parliament received the assent of the President on the 14th January, 1986, and is hereby published for general information:—

THE DELEGATED LEGISLATION PROVISIONS (AMENDMENT) ACT, 1985

No. 4 of 1986

[14th January, 1986.]

An Act to amend certain Acts to implement the recommendations of the Committees on Subordinate Legislation regarding publication and laying of rules and other delegated legislation and certain other matters.

Be it enacted by Parliament in the Thirty-sixth Year of the Republic of India as follows:—

1. (1) This Act may be called the Delegated Legislation Provisions (Amendment) Act, 1985.

Short
title and
com-
mence-
ment.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for amendments relating to different enactments mentioned in the Schedule to this Act.

2. The enactments specified in the Schedule are hereby amended to the extent and in the manner mentioned in the third column thereof.

Amend-
ment of
certain
enact-
ments.

THE SCHEDULE

(See section 2)

AMENDMENTS

Sl. No.	Short title	Amendments
1.	The Indian Railways Act, 1890 (9 of 1890).	In section 143, after sub-section (2), the following sub-section shall be inserted, namely:— “(3) Every rule made under sections 22, 47, 71E and 84 shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.”
2.	The Prisons Act, 1894 (9 of 1894).	Section 59 shall be renumbered as sub-section (1) thereof, and— (a) in sub-section (1) as so renumbered, after the words “The State Government may”, the words “, by notification in the Official Gazette,” shall be inserted; (b) after sub-section (1) as so renumbered, the following sub-section shall be inserted, namely:— “(2) Every rule made under this section shall be

Sl. No. Short title

Amendments

laid, as soon as may be after it is made, before the State Legislature.”.

3. The Designs Act, 1911
(2 of 1911).

In section 77, after sub-section (3), the following sub-section shall be inserted, namely:—

“(4) Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.”.

4. The Co-operative Societies Act, 1912 (2 of 1912).

In section 43, after sub-section (5), the following sub-section shall be inserted, namely:—

“(6) Every rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before the State Legislature.”.

5. The Destructive Insects and Pests Act, 1914
(2 of 1914).

(1) Section 4D shall be renumbered as sub-section (1) thereof, and—

(i) the proviso to sub-section (1) as so renumbered, shall be omitted;

Sl. No. Short title

Amendments

(ii) after sub-section (1) as so renumbered, the following sub-section shall be inserted, namely:—

“(2) Every rule made by the Central Government under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.”

(2) In section 5,—

(i) in sub-section (1), after the words “The State Government may”, the words “, by notification in the Official Gazette,” shall be inserted;

(ii) after sub-section (2), the following sub-section shall be inserted, namely:—

“(3) Every rule made by the State Government under this section shall be laid, as soon as may be after it is made, before the State Legislature.”

Sl. No.	Short title	Amendments
6.	The Poisons Act, 1919 (12 of 1919).	In section 8, after sub-section (3), the following sub-sections shall be inserted, namely:— “(4) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule. (5) Every rule made by the State Government under this Act shall be laid, as soon as may be after it is made, before the State Legislature.”.
7.	The Indian Securities Act, 1920 (10 of 1920).	In section 24, after sub-section (4), the following sub-sections shall be inserted, namely:— “(5) Every rule made by the Central Government under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid,

Sl. No. Short title

Amendments

both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

(6) Every rule made by the State Government under this section shall be laid, as soon as may be after it is made, before the State Legislature.”

8. The Identification of Prisoners Act, 1920 (33 of 1920).

In section 8,—

(i) in sub-section (1), after the words “The State Government may”, the words “, by notification in the Official Gazette,” shall be inserted;

(ii) after sub-section (2), the following sub-section shall be inserted, namely:—

“(3) Every rule made under this section shall be laid, as soon as may be after it is made, before the State Legislature.”

9. The Passport (Entry into India) Act, 1920 (34 of 1920).

In section 3, after sub-section (4), the following sub-section shall be inserted, namely:—

“(5) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule

Sl. No. Short title

Amendments

should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.”.

10. The Indian Boilers
Act, 1923 (5 of 1923).

(1) Section 28 shall be renumbered as sub-section (1) thereof, and after sub-section (1) as so renumbered, the following sub-section shall be inserted, namely:—

“(2) Every regulation made under this Act shall be laid, as

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode

IndiaCode